

MEDALLION BANK v HALLETT

25CV48397

PLAINTIFF COUNSEL'S MOTION TO BE RELIEVED

Collen M. Auer, Esq. and Auer Ryan PC ("Firm") seek to be relieved as counsel of record for Plaintiff Medallion Bank ("Plaintiff.")

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (*Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.) California Rules of Court, rule 3.1362 requires (1) a notice of motion and motion directed to the client (Civil Form MC-0510); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure § 284(2) is brought instead of filing a consent under section 284(1) (Civil form (MC052)); (3) service of the notice of motion and motion, the declaration, and the proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (Civil form (MC-053)).

Attorney Collen M. Auer and her Firm seek to withdraw as Plaintiff's counsel because the Principals of the firm are retiring and the Firm is closing business as of August 31, 2026. Ms. Auer and Firm represent that judgment in this matter was entered on July 6, 2026, the time for appeal has run, and there are no remaining matters on this Court's calendar in this case. Ms. Auer and Firm represent that Plaintiff has been aware of the impending retirement and closure for an ample period of time and has not expressed any disagreement but has failed to respond to the Firm's effort to obtain a signed consent to withdraw.

Ms. Auer and Firm have informed Plaintiff of their intention to withdraw as counsel via U.S. mail at an address confirmed to be accurate within the past thirty days.

Based on the foregoing, the Motion to Be Relieved is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted (Proposed) Order.